

MINUTES OF THE REGULAR CITY COUNCIL MEETING
September 17, 2024; 5:30 p.m.

- CALL TO ORDER A regular meeting of the Council of the City of North Platte, Nebraska was convened in open and public session at 5:30 p.m. in the City Hall Council Chambers at 211 West 3rd Street.
- Invocation was given by Ed Rieker and the pledge of allegiance was recited.
- ROLL CALL Present were Nisley, Tryon, Volz, Lucas, Flanders, Rieker, Woods. Garrick was absent. Mayor Brandon Kelliher presided and City Clerk Angela Gilbert recorded the proceedings.
- OPEN MEETINGS
ACT Mayor Kelliher stated that a current copy of the Open Meetings Act of Nebraska is posted on the wall at the back of the Council Chambers.
- Notice of the meeting was given in advance thereof by posting in three public places in the City as follows: North Platte Public Library, Lincoln County Courthouse and City Hall; the designated method for giving notice (Certificate of Posting) is attached to these Minutes. Proceedings hereafter shown were taken while the meeting was open to the attendance of the public.
- CONSENT AGENDA Rieker moved and Nisley seconded the motion to approve the Consent Agenda as follows:
1.
 - A. Approve the Minutes of September 3 and 10, 2024.
 - B. Place on file Treasurer's report for August 2024.
 - C. Approve the application by North Platte Jaycee's for a Special Designated License on November 16, 2024 from 4:00 p.m. to 9:00 p.m. at the D & N Event Center, 501 East Walker Road for the Soup Fur Paws Fundraiser.
 - D. Approve the application by Niobrara Valley Vineyards LLC for a Special Designated License on December 14, 2024 from 9:00 a.m. to 5:00 p.m. and December 15, 2024 from 10:00 a.m. to 4:00 p.m. at the D & N Event Center, 501 East Walker Road for a Craft Show.
 - E. Approve the Collective Bargaining Agreement between the City of North Platte and Public Service Union Nebraska Public Employees Local 251 for the term between October 1, 2024 through September 30, 2027.
- Roll call vote: "AYE": Nisley, Tryon, Volz, Lucas, Flanders, Rieker, Woods. "NAY": None. "ABSENT": Garrick. Motion carried.

ITEM #3A
ACCESS AND
EASEMENT
AGREEMENT WITH
MIDWEST LAND
DEVELOPMENT

Rieker moved and Lucas seconded the motion to authorize the Mayor to negotiate and sign the Access and Easement Agreement with Midwest Land Development, LLC. Roll call vote: "AYE": Nisley, Tryon, Volz, Lucas, Flanders, Rieker, Woods. "NAY": None. "ABSENT": Garrick. Motion carried.

ITEM #4
MICROTIF
BLIGHT AND
SUBSTANDARD
STUDY-LCCDC

Lucas moved and Volz seconded the motion to refer the City of North Platte, Nebraska MicroTIF Blight and Substandard Study-LCCDC as prepared by the City of North Platte Planning Department to the City of North Platte Planning Commission for a public hearing to determine if the proposed area qualifies as blighted and substandard. Roll call vote: "AYE": Nisley, Volz, Lucas, Flanders. "NAY": Tryon, Rieker, Woods. "ABSENT": Garrick. Motion carried.

ITEM #5
INTERLOCAL
AGREEMENTS FOR
MAINTENANCE OF
ROADS

Flanders moved and Volz seconded the motion to approve the renewal of two Interlocal Agreements between the City of North Platte and Lincoln County for Maintenance of Roads and authorize the Mayor to execute the documents for the City. Roll call vote: "AYE": Nisley, Tryon, Volz, Lucas, Flanders, Rieker, Woods. "NAY": None. "ABSENT": Garrick. Motion carried.

ITEM #6
USER FEES FOR
FISCAL YEAR
2024-2025

Rieker moved and Volz seconded the motion to adopt the Resolution setting User Fees for fiscal year 2024-2025.

Lucas moved and Rieker seconded the motion to amend the Resolution setting User Fees for fiscal year 2024-2025 to keep the Building Permits Fees the same under the Development Department heading.

Lucas withdrew his motion, with the consent of Rieker.

Nisley moved and Lucas seconded the motion to amend the Resolution setting User Fees for fiscal year 2024-2025 to keep the Kiddie Rides ticket purchase price the same under the Public Service/Parks and Recreation Department heading. Roll call vote: "AYE": Nisley, Tryon, Volz, Lucas, Flanders, Rieker, Woods. "NAY": None. "ABSENT": Garrick. Motion carried.

Rieker moved and Woods seconded the motion to amend the Resolution setting User Fees for fiscal year 2024-2025 to keep the Itinerant Sales Permit Fee the same under the Police Department heading. Roll call vote: "AYE": Tryon, Rieker, Woods. "NAY": Nisley, Volz, Lucas, Flanders. "ABSENT": Garrick. Motion failed.

Roll call vote on the main motion as amended: "AYE": Nisley, Tryon, Volz, Lucas, Flanders, Rieker, Woods. "NAY": None. "ABSENT": Garrick. Motion carried.

ITEM #7
ISSUE
WARRANTS
TO THREE
VENDORS

Rieker moved and Flanders seconded the motion to adopt the Resolution approving claims and authorizing the issuance of one warrant to Myers Construction, Inc. in the amount of \$3,021.12, one warrant to Level, LLC in the amount of \$458,264.44, and one warrant to Simon Contractors in the amount of \$538,461.75 to pay approved claims and referring to and incorporating the terms and conditions of Ordinance No. 3874 relating to warrant financing. Roll call vote: "AYE": Nisley, Tryon, Volz, Lucas, Flanders, Rieker, Woods. "NAY": None. "ABSENT": Garrick. Motion carried.

ITEM #8
CLAIMS

Rieker moved and Volz seconded the motion to approve the Claims. Roll call vote: "AYE": Nisley, Tryon, Volz, Lucas, Flanders, Rieker, Woods. "NAY": None. "ABSENT": Garrick. Motion carried.

CLOSED SESSION

Lucas moved and Rieker seconded the motion to go into Closed Session at 6:20 p.m. for the purpose of discussing contracts. Roll call vote: "AYE": Nisley, Tryon, Volz, Lucas, Flanders, Rieker, Woods. "NAY": None. "ABSENT": Garrick. Motion carried.

Mayor Kelliher restated the purpose of the Closed Session is to discuss contracts.

RETURN TO
REGULAR SESSION

Rieker moved and Lucas seconded the motion to come out of Closed Session and return to Regular Session at 6:52 p.m. Roll call vote: "AYE": Nisley, Tryon, Volz, Lucas, Flanders, Rieker, Woods. "NAY": None. "ABSENT": Garrick. Motion carried.

ITEM #2
TABLED

Rieker moved and Lucas seconded the motion to table the contract for Industrial Wastewater Plant Lagoon Liner and action to allow the Mayor to change contractor selection and negotiate and execute contracts. Roll call vote: "AYE": Nisley, Tryon, Volz, Lucas, Flanders, Rieker, Woods. "NAY": None. "ABSENT": Garrick. Motion carried.

ITEM #3
EQUIPMENT
PROCUREMENT
PACKAGE #1 FOR
WWTP

Rieker moved and Volz seconded the motion to approve the selection of Atlas Copco, Walling Company, Electric Pump, JCI Industrial, Varec Biogas and Schwing BioSet for Equipment Procurement Package #1 for the Industrial Wastewater Treatment Plant and authorize the Mayor to negotiate and execute the contracts. Roll call vote: "AYE": Nisley, Tryon,

Volz, Lucas, Flanders, Rieker, Woods. "NAY": None.
"ABSENT": Garrick. Motion carried.

ADJOURN

Rieker moved and Volz seconded the motion to adjourn. Roll
call vote: "AYE": Nisley, Tryon, Volz, Lucas, Flanders, Rieker,
Woods. "NAY": None. "ABSENT": Garrick. Motion carried.

Adjourned at 6:55 p.m.

Angela Gilbert, City Clerk